DISCLOSURE TEXT - TSUDS (TSU DISCLOSURE STATEMENT) FOR THE ELECTRONIC TIMESTAMPING SERVICE

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Edition	Edition date	Description of Change
1	15.10.2021	Edición inicial
2	20.05.2025	A new item d) is added to section 1.7 concerning the obligations of DEH.
		Section 1.8 concerning the liability of DEH is added.

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INDEX

1. DISCLOSURE TEXT – TSUDS APPLICABLE TO THE ELECTRONIC TIMESTAMPING SERVICE 2
1.1. Full agreement 3
1.2. Contact information 3
1.2.1. Responsible Organization 3
1.2.2. Contact 3
1.2.3. Revocation proceedings contact 3
1.3. Types and purpose of electronic timestamping 4
1.3.1. Time stamp content 4
1.3.2. Certificates validation 5
1.3.3. Subscribers 5
1.3.4. Timestamping issuer Entity 5
1.3.5. User community and applicability 5
1.4. Limits of use of certificate 5
1.4.1. Time accuracy on the electronic timestamping 5
1.5. Subscribers' obligations 5
1.6. Verifiers obligations 6
1.6.1. Informed decision 6
1.6.2. Verification requirement for the electronic signature related to the qualified electronic timestamping 6
1.6.3. Trust on a non verified electronic signature related to a qualified electronic timestamping 6
1.6.4. Verification effect 6
1.6.5. Proper use and prohibited activities 6
1.7. DEH obligations 7
1.8. Liability of DEH 7
1.9. Limited guarantees and guarantees rejection 8
1.10. Applicable agreements and CPS 8
1.11. Privacy policy 9
1.12. Refund policy 9
1.13. Applicable law, competent jurisdiction, claims and legal disputes 9
1.14. Accreditations and quality seals 9
1.15. Accreditations and compliance audits 9
1.16. Severability, survival, entire agreement and notification clauses 10

1. DISCLOSURE TEXT – TSUDS APPLICABLE TO THE ELECTRONIC TIMESTAMPING SERVICE

WARNING: Only the computer document hosted on the DEH ONLINE server or those printed with the text of "CONTROLLED COPY" and copy number are official copies. The rest are UNCONTROLLED COPIES

This document contains the essential information in connection with the certification service of the Qualified Electronic Timestamping of the Entity of DEH NOTIFICACION ELECTRONICA HABILITADA SL.

This document follows the defined structure of the Annex B of the Regulation ETSI EN 319 421-1.

1.1. Full agreement

The present document provides high-level statements with regards to DEH's qualified electronic timestamping service. It does not substitute, nor revoke any other policy of DEH available at www.dehonline.es

1.2. Contact information

1.2.1. Responsible Organization

The Qualified Electronic Timestamping Authority DEH, known as 'DEH´ is the result of:

DEH NOTIFICACION ELECTRONICA HABILITADA SL,
C/ SIERRA DE CAZORLA, 1.
28290 - LAS ROZAS (MADRID)
+34 91 050 49 79
ATENCIONALCLIENTE@DEHONLINE.ES

1.2.2. Contact

For inquiries, please contact:

DEH NOTIFICACION ELECTRONICA HABILITADA SL,
TELÉFONO: +34 91 050 49 79
EMAIL: ATENCIONALCLIENTE@DEHONLINE.ES

1.2.3. Revocation proceedings contact

For inquiries, please contact:

DEH NOTIFICACION ELECTRONICA HABILITADA SL,
TELÉFONO: +34 91 050 49 79
EMAIL: ATENCIONALCLIENTE@DEHONLINE.ES

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1.3. Types and purpose of electronic timestamping

The qualified timestamping service follows the guidelines of the PDS of the TSU Certificate with the OID 1.3.6.1.4.1.47286.1.5., issued by Uanataca, S.A., hereinafter *UANATACA*, and available in www.uanataca.com.

The service provided by DEH is identified with the OID: 1.3.6.1.4.1.57853.1.1 and it is in accordance with Best Practices Policy for Time-Stamp (BTSP) defined by ETSI 319 421, with the OID 0.4.0.2023.1.1.

itu-t(0) identified-organization(4) etsi(0) time-stamp-policy(2023) policy-identifiers(1) baseline-ts-policy (1)	0.4.0.2023.1.1.

The electronic timestamping are qualified certificates according to Regulation UE 910/2014 and the certificate of the TSU is issued with the policy on ETSI EN 319 411-2.

The clients receiving this electronic timestamping service are obliged to comply with the current legislation and comply with the signed contracts with this Stamping Authority, verify with the correction of the timestamping signature, the validity of the TSU certificate, as well as to verify the hash of the timestamping matches with the one that was sent previously.

1.3.1. Time stamp content

Each time stamp issued by DEH contains all the information required by the regulation, such as:

1. Time stamp serial number.
2. Time stamp signature algorithm. In this case, the algorithm used is RSA (SHA256rsa 1.2.840.113549.1.1.11).
3. The identifier of the certificate relative to the public key of the TSU.
4. The date and time of the time stamp.
5. The accuracy of the time source compared to UTC. In this case, 1 second or better (see 1.4.1 of this document).
6. The identifier regarding the hash algorithm used to generate the evidence. The algorithm used is (Secure hash ALGORITHM 256-bit OID: 2.16.840.1.101.3.4.2.1).
7. The value of the footprint regarding electronic evidence.

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1.3.2. Certificates validation

The verification of the state of the certificates is carried out from:

- Service access of OCSP: http://ocsp1.uanataca.com/public/pki/ocsp/
- Download of the CRL from: www.dehonline.es

1.3.3. Subscribers

The subscriber is the natural or legal person that has signed the electronic timestamping service of DEH.

1.3.4. Timestamping issuer Entity

The electronic timestamping services are issued by DEH, identified previously.

1.3.5. User community and applicability

The service users will be principally, the applications and/or clients systems (natural or legal persons), which have requested these services of DEH. The electronic timestamping provided by TSU of DEH, are included as services provided by DEH, with a national supervisor complying with the current technical and legal regulations.

1.4. Limits of use of certificate

The electronic timestamping restrict its use in the applications and/or systems of the clients (natural or legal persons) that have signed of these services.
The electronic timestamping cannot be used for other purposes than those previously mentioned.

1.4.1. Time accuracy on the electronic timestamping

The Qualified Timestamping service of DEH is based on the use of TSP protocols on HTTP, defined in the regulation RFC 3161 'Internet X.509 Public Key Infrastructure Time-Stamp Protocol (TSP)'.

DEH has a trustworthy source of time for highest availability that allows a level of trust of STRATUM 3, via NTP, with the CSUC.

The time accuracy of the Qualified Timestamping of DEH is a second regarding UTC.

1.5. Subscribers' obligations

The subscriber is obliged to:

- Apply the qualified electronic timestamping in accordance with the procedure and, if it is needed, the trustworthy technical components provided by DEH, as per the certification practice statement (CPS) and in the DEH documentation.
- Follow the specific instructions on the PDS of the TSU certificate of DEH.

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- Verify the electronic signatures of the electronic timestamping, including the validity of the used certificate.
- Use the electronic timestamping within the limits and the area referred in this TSUDS.

1.6. Verifiers obligations

1.6.1. Informed decision

The verifier will compromise to comply the technical, operational and security requirements described in the CPS of DEH.

1.6.2. Verification requirement for the electronic signature related to the qualified electronic timestamping

The verification will usually be executed automatically by the verifier software and, in other case, according to the CPS and this TSUDS.

1.6.3. Trust on a non verified electronic signature related to a qualified electronic timestamping

If the verifier is confident on an electronic signature related to a non verified qualified electronic timestamping will assume all risks from that action.

1.6.4. Verification effect

Under the correct verification of the electronic timestamping certificates of compliance with this disclosure text (PDS), the verifier can trust the provided information.

1.6.5. Proper use and prohibited activities

The verifier agrees not to use any type of status information of qualified electronic timestamping or any other type that has been supplied by DEH, in performing a prohibited transaction by the applicable law of that transaction.

The verifier agrees not to inspect, interfere or perform any reverse engineer of the technical implementation of public services for electronic timestamping or certification of DEH without prior written consent.

In addition, the verifier binds not to intentionally compromise the security of public services electronic timestamping of DEH.

The qualified electronic timestamping services provided by DEH have not been designed and its use or resale as control equipment for dangerous situations is not authorized nor for uses that require fail-safe actions, such as the operation of nuclear installation, navigation systems, air communications, or weapons control systems, where a failure could lead directly to death, personal injury or severe environmental damage.

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1.7. DEH obligations

Regarding the provision of the qualified electronic timestamping service, DEH, undertakes:

a) Issue, deliver and manage qualified seals, according to the instructions provided by the subscriber, in the cases and for the reasons described in DEH CPS.

b) Perform the services with technical media and suitable materials, and with personnel that meet the qualification conditions and experience established in the CPS.

c) Comply the quality service levels, in accordance with what is established in the CPS, in the technical, operational and security aspects.

d) Safeguard, for a period of 15 years, the information related to the service. This information includes the Certification Practice Statements, public disclosure documents, timestamping units, as well as logs associated with the execution of the service.

1.8. Liability of DEH

DEH warrants, under its full responsibility, that it complies with all the requirements established in the Timestamping Certification Practice Statement, and is responsible for the fulfillment of the procedures described herein, in accordance with the provisions of this document.

DEH provides the electronic certification services in accordance with this Timestamping Certification Practice Statement.

DEH informs the subscriber of the terms and conditions applicable to the provision of the timestamping service, including its price and limitations of use, through a subscriber agreement that incorporates by reference the service's public disclosure statements (PDS).

The public disclosure statement, also referred to as PDS, complies with the content requirements set forth in Annex A of ETSI EN 319 421. This document may be delivered electronically, using a durable communication medium, and presented in an understandable language.

Through the public disclosure statement (PDS), DEH binds both subscribers and relying third parties to the following minimum terms and conditions, expressed in clear and understandable language:

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- Provisions for compliance with the present document.
- Usage limitations of the timestamp tokens.
- Information on how to validate a timestamp token, including the requirement to verify its status, and the conditions under which reliance on the token is deemed reasonable, which applies when the subscriber acts as a relying party.
- Mechanisms by which the Certification Service Provider's financial liability is ensured.
- Applicable liability limitations, including the uses for which the Certification Service Provider accepts or excludes liability.
- Retention period for audit logs.
- Applicable dispute resolution procedures.
- Governing law and competent jurisdiction.

1.9. Limited guarantees and guarantees rejection

DEH guarantee for the qualified electronic timestamping services
DEH guarantees to the subscriber that the timestamping complies with the material requirements established in the Certification Practice Statement (CPS).
DEH guarantees the relying third party on the qualified electronic timestamping that the information contained or incorporated by reference in the seal is accurate, except where indicated the opposite.
Additionally, DEH guarantees to the subscriber and the relying third party in the timestamping the responsibility of the Certification Authority, with the limits established. DEH will not be responsible for fortuitous events or force majeure.

Guarantee exclusion
DEH rejects any other different guarantee to the previous that is not legally enforceable.

1.10. Applicable agreements and CPS

Applicable agreements
Applicable agreements of high-qualified electronic timestamping are the following:

- Certification services contract, which regulates the relation between DEH and the subscribing qualified electronic timestamping company.
- Service general terms incorporated in this disclosure text (PDS) of the TSU certificate.
- The conditions incorporated in the disclosure text TSUDS of the electronic timestamping.
- CPS regulates the certificates issuance and use of the qualified electronic timestamping certificates.

Certification practice statements (CPS)

DEH certification services and timestamping are technically an operationally regulated by the CPS of DEH, for its subsequent updates, as well as the additional documents.

The CPS and the operations documentation is changed periodically in the Registry and can be consulted on the website: www.dehonline.es

1.11. Privacy policy

See Section 9.4 of the CPS of DEH.

1.12. Refund policy

DEH will not reimburse the cost of certification under any circumstance.

1.13. Applicable law, competent jurisdiction, claims and legal disputes

The relations with DEH are governed by the Spanish law as well as the applicable civil and commercial legislation.

The competent jurisdiction is indicated in the Civil Procedure Law 1/2000, of January 7th

In case of disagreement between the parties, the parties will try an amicable settlement.
For this purpose, the parties should address a communication to DEH, by any means, which they will leave a written record to the contact address indicated on section 1 on this document.

In case the parties do not reach an agreement, any of them could refer the dispute to the civil jurisdiction, with subjection to Law Courts of the Registered Office of DEH.

More information about dispute settlement can be found on www.dehonline.es

1.14. Accreditations and quality seals

Non-stipulated.

1.15. Accreditations and compliance audits

DEH is included in the Spanish list of trustworthy service lender (TSL) https://sede.minetur.gob.es/prestadores/tsl/tsl.pdf

Furthermore it is registered as a qualified trustworthy electronic services lender on the Energy, Tourism and Digital Agenda Department:

https://sedeaplicaciones2.minetur.gob.es/prestadores/busquedaPrestadores.jsp?opcion=c

According to the guidelines on the Regulation UE 910/2014, DEH will perform compliance audits every 2 years.

1.16. Severability, survival, entire agreement and notification clauses

The clauses of this disclosure text are independent of each other, that is why, if any clause is held invalid or unenforceable, the remaining clauses of the PDS will still be applicable, except expressly agreed by the parties.

The requirements contained in the sections 9.6.1 (Obligations and responsibilities), 8 (Audit of conformity) and 9.3 (Confidentiality) of the CPS of DEH shall continue in force after the service termination.

This text contains the full will and all agreements between the parties.

The parties mutually notify the facts by sending an email to:

- atencionalcliente@dehonline.es
- The e-mail address indicated by the subscriber on the DEH contract.

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